



U.S. Department
of Transportation

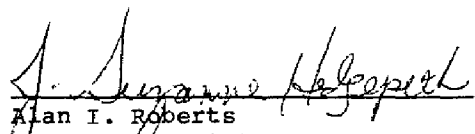
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8547 (EXTENSION)
SECOND REVISION February 5, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8547 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

for 
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 18 1991

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Van Leer Containers Inc.
Chicago, IL

December 21, 1990



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 5 1990

DOT-E 8547
(SECOND REVISION)

1. Van Leer Containers Inc., Chicago, Illinois is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of certain corrosive liquids described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the manufacturing, marking and sale of a non-DOT specification 55-gallon steel tight-head drum incorporating a molded polyethylene top head, in lieu of a steel top head, for shipment of certain corrosive liquids, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Natico Incorporated's application dated January 12, 1989, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon, and Van Leer Containers, Inc.'s supplemental correspondence dated January 8, 1990.
3. HAZARDOUS MATERIALS (Descriptor and class). Corrosive liquids, classed as corrosive material, for which DOT Specification 17E is prescribed in 49 CFR Part 173; cleaning compounds containing not over 14 percent hydrofluoric acid by weight, classed as corrosive material, also are authorized when a 2U liner is used as described in paragraph 7.a. Commodities must be compatible with the polyethylene top head, and must not permeate the PE to an extent that a hazardous condition could be caused during transportation and handling.
4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR Part 173 Subpart F; §178.116.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.
7. SAFETY CONTROL MEASURES.
 - a. Packaging prescribed is a non-DOT specification steel drum of 55-gallon capacity, complying with DOT-17E except that it incorporates a molded polyethylene tight head (secured with a steel ring as shown in Drawing #AS-220-B, dated October 15, 1980, and included in petitioner's application) in place of a steel top head. Optionally, the drum may be similarly configured except to incorporate a Specification 2U inside packaging. Drum must be capable of satisfactorily complying with the performance test prescribed in Sections 178.116-12 and 178.116-13 (and 178.24-7 when fitted with a DOT-2U liner), except that the drum must be dropped diagonally on top.
 - b. The markings specified in 49 CFR 178.116-10 are required, except each drum must be marked "DOT-E 8547" in place of "DOT 17E". Markings may be in either the top or bottom head. If marked in the bottom head, the drum must also be durably and conspicuously marked "DOT-E 8547" on the body or top head.

8. SPECIAL PROVISIONS.

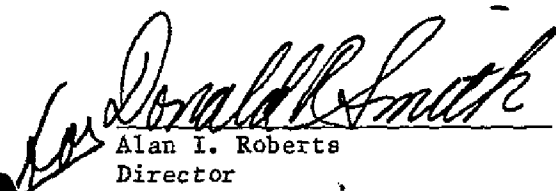
a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. Reuse of packaging. The reuse provisions applicable to DOT Specification 17 E steel drums (as prescribed in 49 CFR 173.28(m)), apply to this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. January 31, 1991.8547

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

FEB 5 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA